

Welcome to Hubeco!!

We're delighted to have you here. These Terms of Sale are designed to help you understand the guidelines and rules that govern your use of our Platform. Please read them carefully, as they set out your rights and responsibilities when using our Services. By accessing or using Hubeco, you agree to comply with these Terms.

This document is an electronic record in terms of the Information Technology Act, 2000 and rules there under as applicable and the amended provisions pertaining to electronic records in various statutes as amended by the Information Technology Act, 2000. This electronic record is generated by a computer system and does not require any physical or digital signatures.

This document is published in accordance with the provisions of Rule 3 (1) of the Information Technology (Intermediaries guidelines) Rules, 2011 that require publishing the rules and regulations, Privacy Policy, and Terms of Sale for access or usage of domain name <https://hubeco.market> (the "**Website**").

Your Service Provider:

These Terms of Sale (the "**Terms**") constitute a legally binding agreement between Hubeco Green Ventures Private Limited, its subsidiaries, and affiliates ("**Company**," "**we**," "**our**," or "**us**") and Vendor ("**you**", or "**your**"). These Terms will be effective upon your acceptance of the same (directly or indirectly in electronic form or by means of an electronic record) and will govern the relationship between us and you for the use of our Website <https://hubeco.market>, our Services and any of our other websites, mobile or digital applications, or any other services we offer from time to time by or in connection therewith (together referred to as the "**Platform**" or "**Hubeco**"). The Platform is owned and operated by Hubeco Green Ventures Private Limited having its registered office at H No: 8-2-293/F-II/A/20A, Filmnagar, Jubilee Hills, Shaikpet, Hyderabad, Telangana, India, 500033.

For the purpose of these Terms, wherever the context so requires "**you**" or "**your**" refers to any natural or legal person who has agreed to become the Vendor (including their authorised users) on the Platform by registering with us through their device or any other individual or entity who accesses or interacts with the Platform. For avoidance of doubt, the term "**User**" shall collectively refer to the Buyer and the Vendor. The applicability of these Terms extends to users regardless of the device type used for accessing our Platform, whether it be a laptop/desktop or a mobile/tablet device.

About the Platform:

The following constitutes the "**Services**":

Hubeco is an innovative e-commerce platform dedicated to connecting B2C and B2B customers (the "**Buyers**") and Vendors (the "**Vendors**") within the sustainable construction and related sectors. The Platform facilitates the sale and procurement of eco-friendly building materials and/or related services. The Platform ensures that all listed products meet green certification standards, providing peace of mind regarding the environmental impact and reliability of the products.

By providing a comprehensive online marketplace, the Platform enables Vendors to reach a larger customer base and sell their Products online. Vendors have the flexibility to propose all commercial and contractual terms, including but not limited to Product pricing, applicable return and cancellation terms, and shipping methods.

Acceptance of Terms:

Our role under these Terms is limited to administration and managing the Platform, including any Services made available to you on the Platform.

ACCESSING, BROWSING, OR OTHERWISE USING THE PLATFORM INDICATES YOUR AGREEMENT TO ALL THE TERMS AND CONDITIONS UNDER THESE TERMS, SO PLEASE READ THE TERMS CAREFULLY BEFORE PROCEEDING.

By impliedly or expressly accepting these Terms, you also accept and agree to be bound by our Privacy Policy as amended from time to time. We encourage you to read the, [Privacy Policy](#), [Delivery & Shipping Policy](#) and [Return, Refund and Cancellation Policy](#) in conjunction with these Terms to better understand how you can update, manage, export, and delete your information. **If you do not agree with anything provided herein, please do not use or access our Platform and/or Services.**

We reserve the unilateral right to change the particulars contained in these Terms from time to time, without notice to you and in our sole discretion. If we make any such revision in these Terms, we will update the effective date above and the revised Terms shall be effective from such date. You are required to frequently check these Terms and their effective date to understand the terms and conditions that apply to your use of our Services. Your continued use of the Platform and/or Services following such modification constitutes your acceptance of the modified Terms of Sale, whether or not you have read them.

Further, we may change, suspend, and/or discontinue the Services at any time, including the availability of any feature, database, and content on the Platform. We may also restrict your access to parts and/or all of the Platform without notice in the event of technical disruptions or other similar events and we shall not be liable to you in such cases.

1. VENDOR'S ELIGIBILITY

- 1.1. We welcome individuals and entities to utilise our Services, subject to adherence to these Terms of Sale. To ensure clarity, Vendors, who use our Platform and Services to list and sell their eco-friendly building materials, must:
 - 1.1.1. be at least 18 years old and capable of forming a legally binding agreement;
 - 1.1.2. have the authority to enter into agreements and comply with the terms outlined in this Terms on behalf of the entity, if applicable;
 - 1.1.3. have all necessary licences, permits, certifications and authorizations for listing and selling on the Platform;
 - 1.1.4. demonstrate the intention and capacity to utilise the Services effectively.
- 1.2. **Prohibited Individuals:**
 - 1.2.1. **Individuals under 18 years old:** Minors under the age of 18 are not eligible to use our Services. If you are under 18, please refrain from using our Platform without appropriate parental or guardian consent.
 - 1.2.2. **Individuals barred from using the Services:** Individuals who have been previously suspended or prohibited from accessing our Services by us or any competent authority are not allowed to use our Platform.
 - 1.2.3. **Individuals engaging in Illegal Activities:** Individuals or entities engaged in or intending to engage in any activity that is illegal under applicable law, including but not limited to fraud, money laundering, and terrorism financing.

- 1.2.4. **Individuals with Conflicting Interests:** Individuals or entities that have conflicts of interest that would prevent them from complying with these Terms or that would pose a risk to the integrity of the Platform and its users.
 - 1.2.5. **Individuals from Sanctioned Territories:** You are prohibited from using our Platform if you or the business entity you represent is domiciled, registered, or conducts business in any country or territory subject to financial and economic sanctions, trade embargoes, or similar restrictions imposed by Government of India, including but not limited to Pakistan, North Korea, and Syria. This also applies if you are listed as a prohibited, sanctioned, debarred, or denied party by the Directorate General of Foreign Trade (DGFT) of India, the Reserve Bank of India (RBI), the Ministry of External Affairs (MEA), or any other relevant Indian authority. This Clause shall also apply if you or the business entity you represent is domiciled, registered, or conducts business in any country or territory subject to financial and economic sanctions, trade embargoes United Nations, UN Security Council or any other relevant UN agency. You must obtain any required licence or government authorization before accessing our services if you fall under any of these categories.
- 1.3. **Compliance with Laws:**
- 1.3.1. You must comply with applicable laws, regulations, and policies when using our Platform and/or Services. It is your responsibility to ensure that your use of the Platform does not violate any laws or regulations in your jurisdiction.

2. ACCESS OUR PLATFORM AND SERVICES

- 2.1. **Account Registration:**
- 2.1.1. To utilise the Service, you must register with us by setting up a Vendor Account (the "**Account**"). At the time of the sign-up process, you must furnish accurate, current, and complete information, including but not limited to full name, address, contact number, and email address. If you are registering as an entity or a corporation, it is obligatory to furnish the details asked hereinabove in respect of the company.
- 2.2. **Vendor Onboarding:**
- 2.2.1. To ensure the integrity and reliability of transactions on the Platform, all Vendors must complete a comprehensive onboarding process. This includes submitting a detailed questionnaire that covers government-issued identifiers, bank account details, cancelled cheques, tax compliance credentials, product specifications, types, features, relevant certifications and accreditations (including quality and green certifications), annual turnover, and market presence, as well as any other information required by the Platform. Following this, Vendors must undergo a Know Your Customer (KYC) process where the submitted information is reviewed and approved by us.
 - 2.2.2. Upon successful KYC approval, Vendors shall receive credentials to access the Platform. Each registered Vendor is assigned a dedicated Vendor Module ("**Vendor Module**"). In such Module, Vendors may list their Products, which involves providing detailed product information, quality certificates, product validity, and all required company and tax information. You must ensure that all information provided is true, accurate, current, and complete. The Platform reserves the right to suspend, terminate, or indefinitely block any Vendor's Account if the information provided is found to be false, inaccurate, outdated, incomplete, or otherwise discrepant.
 - 2.2.3. You are responsible for maintaining the confidentiality of your Account credentials and are liable for all activities conducted under your Account. If you have previously registered, you should log in/sign in to your Account using the same credentials provided during the registration process.
- 2.3. **Account Security and Update:**
- 2.3.1. You are responsible for safeguarding your Account credentials and preventing unauthorised access to your Account. Any unauthorised use of an Account must be reported to the Company immediately for investigation.
 - 2.3.2. If you suspect that unauthorised access has been made to your Account, you must notify us immediately by email at info@hubeco.market. We will investigate any alleged unauthorised Account activity. Notwithstanding any other terms pertaining to our right to disable or block access to your Account, we reserve the right to disable or block your Account at any time when it is suspected that unauthorised access has been made to your Account.
 - 2.3.3. If you share or allow others to have access to your Account, you assume exclusive liability and responsibility for all activities conducted on your Account, as well as any resulting consequences.
 - 2.3.4. You acknowledge and agree that we shall not bear any liability or responsibility for the activities or consequences arising from the use or misuse of any information under your Account.
- 2.4. **Vendor Responsibilities:**
- You agree:
- 2.4.1. that your country of residence and/or your company's country of incorporation is the same as the country specified in the contact and/or billing address you provide us;
 - 2.4.2. to fully comply with all applicable laws and any other contractual terms that govern your use of the Platform (and any related interaction or transaction), including those specific laws applicable to you or your end users in any of your geographical locations;
 - 2.4.3. to regularly and autonomously ensure the preservation and backup of all your Content and processed information concerning your Account and Vendor Module and any application features, services, or third-party services utilised, connected, presented, or developed by you;
 - 2.4.4. to provide your Account information accurately and failure to maintain such accurate information, including having an invalid or expired payment method, may result in the inability to access and use the Services;
 - 2.4.5. to maintain the confidentiality of your password and take responsibility for all activities associated with your Account and Module. We retain the right, at our sole discretion, to revoke, reclaim, or modify a username (or first/last name) you choose if we deem, in our judgement, that such username is inappropriate, obscene, or otherwise objectionable;
 - 2.4.6. to notify us in writing immediately if you become aware of any disclosure of your password. You are responsible for any activity on our Platform arising out of any failure to keep your password confidential and may be held liable for any losses arising out of such a failure;
 - 2.4.7. to not create an Account on behalf of anyone other than yourself without their permission. Additionally, using a username with the intent to impersonate another person, or using a username Account that is subject to the rights of someone else without proper authorization, is not allowed;
 - 2.4.8. to not assign or transfer your Account to any other person or entity;
 - 2.4.9. to provide proof of identity to access or use the Services in certain cases. Refusal to provide proof of identity may result in denial of access to or use of the Services;
 - 2.4.10. that we shall not bear any liability or responsibility for the activities or consequences arising from the use or misuse of any information under your Account, including without limitation, situations where you have neglected to update your mobile phone number and/or email address on the Platform;

- 2.4.11. that in the event of a suspected security breach or misuse of your Account, we reserve the right to request a password change or suspend your Account, without incurring any liability to the Company, for a duration deemed appropriate in the circumstances. We disclaim any responsibility for any loss or damage resulting from your non-compliance with this provision;
- 2.4.12. that we do not provide any legal advice or any recommendation with respect to any laws or requirements applicable to your use or any of your Subusers, or your compliance therewith; and
- 2.4.13. to comply with all applicable laws and use the Services only for lawful purposes.

2.5. **Account Suspension and/or Deletion:**

- 2.5.1. You agree to (a) diligently log out from your Account at the conclusion of each session, and (b) promptly inform us of any unauthorised use of your Account. In the event of a suspected security breach or misuse of your Account, we reserve the right to request a password change or suspend your Account, without incurring any liability to the Company, for a duration deemed appropriate in the circumstances. We disclaim any responsibility for any loss or damage resulting from your non-compliance with this provision.
- 2.5.2. You shall be solely responsible for the accuracy and correctness of all such details/information given by you during Account setup. If we have reason to doubt the correctness of any details/information furnished by you or in case any information furnished by you is found incorrect, false, or misleading, we reserve the right to cancel or suspend your registration permanently or for such period as we deem fit.

3. **CONTENT GUIDELINES**

- 3.1. In utilising the Platform and/or Services, you may upload, post, provide, publish, display, link to, or otherwise share information essential for the Services through the Platform. This will include all the information, images, and details regarding your Products, and any logos, names, trademarks of your corporation etc. (collectively referred to as "**Content**"). By doing so, you provide us with a worldwide, irrevocable, non-exclusive, royalty-free licence to employ, reproduce, store, adapt, publish, translate, and distribute Content within the operational scope of the Platform's functionalities. This includes but is not limited to, promotional and advertising purposes across any media now known or hereafter devised. You acknowledge that we may utilise any Content you consistent with our [Privacy Policy](#) on the Platform and you shall not be entitled to any payment or other compensation for such use. It's your responsibility to ensure that your Content abides by applicable laws and any agreement entered into. We aren't responsible for any harm resulting from anyone's access, use, purchase, or downloading of your Content, or for any harm resulting from third-party websites. You're responsible for taking the necessary precautions to protect yourself and your computer systems from viruses, worms, Trojan horses, and other harmful or destructive content.
- 3.2. The Content must comply with the Content Standards set out in this Clause. The Content must not-
 - 3.2.1. contain any material that is defamatory, obscene, indecent, abusive, offensive, harassing, violent, hateful, inflammatory, or otherwise objectionable.
 - 3.2.2. promote sexually explicit or pornographic material, violence, or discrimination based on race, sex, religion, nationality, disability, sexual orientation, or age.
 - 3.2.3. infringe any patent, trademark, trade secret, copyright, or other intellectual property or other rights of any other person.
 - 3.2.4. violate the legal rights (including the rights of publicity and privacy) of others or contain any material that could give rise to any civil or criminal liability under applicable laws or regulations or that otherwise may be in conflict with these Terms of Sale, or our Privacy Policy.
 - 3.2.5. be likely to deceive any person.
 - 3.2.6. promote any illegal activity, or advocate, promote, or assist any unlawful act.
 - 3.2.7. cause annoyance, inconvenience, or needless anxiety or be likely to upset, embarrass, alarm, or annoy any other person.
 - 3.2.8. impersonate any person, or misrepresent your identity or affiliation with any person or organisation.
 - 3.2.9. involve commercial activities or sales, such as contests, sweepstakes, and other sales promotions, barter, or advertising.
 - 3.2.10. give the impression that they emanate from or are endorsed by us or any other person or entity if this is not the case.
- 3.3. Your Content must not be misleading or unlawful, and must not violate any of these Terms, applicable laws, and regulations, or infringe or misappropriate any rights of any person or entity.
- 3.4. You confirm that you possess and will continue to maintain the complete authority, ownership, licences, consents, and permissions necessary to authorise Platform to access the Platform or any part thereof. This authorization allows for the importing, exporting, copying, displaying, uploading, publishing, transmitting, and/or any other utilisation of your Content.
- 3.5. You acknowledge that we may or may not pre-screen all or any part of the Content. However, we retain the right (but are not obligated) to pre-screen, refuse, or remove any Content and/or Products from the Platform at any time, for any reason. This includes, but is not limited to, instances where we receive claims, allegations, or complaints from third parties and/or authorities related to such Content, or for no reason at all. However, we do not endorse or guarantee the accuracy, completeness, or reliability of any Content.
- 3.6. You agree that you have obtained all consents and permissions required under all applicable laws, regarding the processing, storing, collection, posting, transmission, and publication of any personal information and/or image or likeness of any person, entity, or property which is part of the Content, and you will adhere to all laws applicable thereto. Further, your Content is (and will continue to be) true, current, accurate, non-harmful, non-infringing upon any third party rights, and in no way unlawful for you to upload, import, export, copy, possess, post, publish, transmit, display or otherwise use, in the country in which you or your Platform's visitors reside.
- 3.7. **Feedback and Reviews:** The following terms constitute "**Feedback Policy**":
 - 3.7.1. In order to improve customer experience, the Platform implements a mechanism to rate and provide reviews regarding the Vendors and the Products on the Platform and such information shall be available publicly on the Platform.
 - 3.7.2. The Buyers may leave ratings and reviews on your Products and services. The Company shall not bear any responsibility for any adverse comment or rating of the Products on the Platform.
 - 3.7.3. If you provide us with any suggestions, comments or other feedback relating to our Services and/or Platform, which may or may not be subject to any Intellectual Property rights ("**Feedback**"), such Feedback shall be exclusively owned by our Company. By providing such Feedback to us, you acknowledge and agree that it may be used by us in order to: (i) further develop, customise, and improve our Services and/or Platform, (ii) provide ongoing assistance and technical support, (iii) contact you with general or personalised platform-related notices and/or interview requests based on your feedback or otherwise, (iv) facilitate, sponsor, and offer certain promotions, and monitor performance, (v) create aggregated statistical data and other aggregated and/or inferred information, which we may use to provide and improve our Services, (vi) enhance our data security and fraud prevention capabilities, and (vii) comply with any applicable laws and regulations.
 - 3.7.4. If you submit any Feedback, Hubeco may use such Feedback for any purpose without any compensation or obligation to you. We reserve the right to remove any Feedback posted in our public forums for any reason at our sole discretion.
 - 3.7.5. In addition, you (1) represent and warrant that such Feedback are accurate, complete, and do not infringe on any third-party rights; (2) irrevocably assign to us any right, title, and interest you may have in such Feedback and (3) explicitly and irrevocably waive any and all claims relating to any past, present, or future moral rights, artists' rights, or any other similar rights worldwide in or to such Feedback.

4. PRODUCT INFORMATION

4.1. Information Regarding Products:

- 4.1.1. You understand that the Platform seeks to encourage the use of sustainable and eco-friendly materials, products (the “Products”) and related services. Therefore, all the Products listed on the Platform meet strict quality and green certification standards.
- 4.1.2. The Vendors shall provide comprehensive and up-to-date information about each Product to be listed on the Platform, to ensure transparency and reliability for facilitating informed decisions for the Buyers and smooth transactions. This information includes, but is not limited to, the following:
 - 4.1.2.1. *Description:* A detailed description of the Vendor of that Product;
 - 4.1.2.2. *Product Specifications:* A thorough and accurate description of the Products such as product dimensions, weight, and a delimited list of technical specifications.
 - 4.1.2.3. *Brand and Model:* Information about the brand and model of the Products.
 - 4.1.2.4. *Images:* Digitised images accurately depicting the Product without additional logos, text, or markings.
 - 4.1.2.5. *Pricing:* Listing price, including any tiered pricing options.
 - 4.1.2.6. *Order Requirements:* Minimum order quantity.
 - 4.1.2.7. *Legal Content:* Text, disclaimers, warnings, notices, labels, green certifications, LCA, EPD's and other content required by applicable law for the offer, merchandising, advertising, or sale of the Product.
 - 4.1.2.8. *Accessory Information:* Identifying information for accessories related to the Product, if available.
 - 4.1.2.9. *Ratings and Reviews:* Ratings and reviews of the Product, providing feedback and insights from previous Buyers.
 - 4.1.2.10. *Similar Products:* Listings of other Vendors offering similar Products, allowing Buyers to compare options and make informed purchasing decisions.
 - 4.1.2.11. *Additional Information:* Any other information required by applicable law.
- 4.1.3. You acknowledge and agree that you shall be solely responsible for providing accurate and complete information of your Products. It is your responsibility to upload and maintain such information when listing your Products on the Platform. The Platform shall not be liable for any inaccuracies, omissions, or misrepresentations in the information provided by you.
- 4.1.4. You shall also be responsible for updating the information about the Products or the information about yourself as and when required, especially regarding the availability of the Products or otherwise.
- 4.1.5. As a Vendor on this Platform, you are solely responsible for providing accurate and up-to-date product descriptions, including any claims related to green certifications or environmental attributes. This includes, but is not limited to, certifications such as Life Cycle Assessment (LCA), Environmental Product Declaration (EPD), and other relevant certifications issued by recognized third-party authorities or organizations. You warrant that all information provided about your Products is truthful, complete, and not misleading.
- 4.1.6. You understand and agree that the Company does not verify, validate, or endorse any green certifications or environmental claims made by Vendors. The Company expressly disclaims any responsibility for the accuracy, authenticity, or validity of any green certification or environmental claim presented by you. Furthermore, you shall indemnify and hold the Company harmless from any claims, damages, or liabilities arising from inaccuracies, misrepresentations, or errors in the product descriptions or green certifications provided by you.
- 4.1.7. In the event that the Company becomes aware of any discrepancies or misrepresentations in your product descriptions or green certifications, including those related to LCA or EPD claims, the Company reserves the right to suspend or remove your Products from the Platform without prior notice.

5. PLATFORM CHARGES

5.1. Subscription Plans:

- 5.1.1. We offer monthly subscription plans for our Services on our Platform to the Vendors, including Freemium and Premium:
 - 5.1.1.1. **Freemium Plan:** As the name suggests, for Freemium Plan there is no monthly fee and is free of cost. This plan is designed specifically for small businesses and new Vendors. The Freemium Plan allows Vendors to list up to 5 Products on the Platform through their Module(s). In addition to Product listings, Vendors will have access to essential features such as order management and the ability to receive reviews and ratings from Buyers for their Products. Support for the Freemium Plan is provided through both email and phone channels, ensuring Vendors can get assistance when needed. This plan is intended to help new and small Vendors establish their presence on the Platform without incurring any initial costs.
 - 5.1.1.2. **Premium Plan:** For Vendors opting for the Premium Plan, which is perfect for established businesses seeking maximum exposure and sales growth, the monthly fee is Rs 5000/- exclusive of GST. This plan offers unlimited Product listings, allowing Vendors to showcase their full range of Products. Premium Plan subscribers will benefit from a dedicated account manager, providing personalised support and assistance from Hubeco. Additional features include without limitation comprehensive order management, the ability to receive product reviews and ratings and enhanced marketing support. Vendors will also gain access to sales and revenue analytics, as well as listings of projects, where their Products are deployed and/or their Buyers list on their Module, all aimed at maximising visibility and driving business growth.
- 5.1.2. You need to select a subscription plan at the time of registration that aligns with your requirements and is suitable for the size of your business. The detailed features and pricing of all Vendor subscription plans are available at [Plans](#).
- 5.1.3. You shall have the option to choose between starting with the Freemium plan or opting directly for the Premium plan upon onboarding. This flexibility allows you to select the plan that best suits your immediate business needs and growth objectives from the outset of your engagement with our Platform.
- 5.1.4. The Company shall issue invoices to you for each subscription purchased or renewed on the Platform. The Company will generate and provide the invoice to the Vendor within two (2) business days following the purchase or renewal of the subscription. It is the Vendor's responsibility to ensure timely renewal of their subscription for continued utilisation of the Platform and services. Failure to renew the subscription may result in the Vendor's account being downgraded from a Premium subscription to a Freemium subscription. As a result, access to premium features and functionalities will cease, and any Premium features associated with the subscription will no longer be available. For example, if the Vendor is using Premium features that allow the listing of six Products and they fail to renew, the number of visible Products may be reduced in accordance with the Freemium plan. You agree to ensure that all information provided during the subscription process is accurate and up-to-date. The Company shall not be liable for any delays or errors in the invoice issuance resulting from inaccurate or incomplete information provided by the Vendor.

5.2. Payment Terms:

- 5.2.1. You are authorised to use valid credit/debit cards, or any other accepted payment methods, including online banking facilities, for the purpose of purchasing the subscription plans on our Platform. You are required to provide accurate and complete details of your credit/debit cards, Unified Payment Interface (UPI) details (if applicable) or online banking accounts. It is your responsibility to ensure the correctness of the information provided, and any incurred costs, expenses, losses, or damages resulting from the submission of incorrect details are solely your responsibility.

- 5.2.2. We disclaim any responsibility and liability for any loss or damage incurred by you during the utilisation of available payment methods on the Platform. This includes but is not limited to, instances such as:
- 5.2.2.1. Lack of authorization for a transaction;
 - 5.2.2.2. Exceeding the mutually agreed preset limit between you and the respective bank;
 - 5.2.2.3. Payment issues arising from the transaction; and/or
 - 5.2.2.4. Transaction being declined due to any other reasons.
- 5.2.3. All payments made against the purchases on the Platform by you shall be compulsorily in **Indian Rupee (INR)**. The Platform will not facilitate transactions concerning any other form of currency with respect to the purchases made on the Platform. If you choose to pay using a different currency, the applicable conversion rate will apply, and any conversion costs will be borne by you alone.
- 5.2.4. We use PayU as a provider of payment gateway services ("**Payment Processor**") on the Platform. You acknowledge and agree that any payment made on the Platform shall also be subject to the terms and conditions of PayU which can be found [here](#).
- 5.2.5. By accepting these Terms, you expressly authorise us and the Payment Processor to electronically collect, process, facilitate, and remit payments, including the subscription amount, through electronic means on the Platform.
- 5.2.6. You acknowledge, understand, and agree that the payment facility provided by us constitutes neither a banking nor financial service. Instead, we function as a facilitator, offering an electronic, automated online payment, and remittance facility for transactions on the Platform through the existing authorised banking infrastructure and credit card payment gateway networks. It is imperative to clarify that, in providing the payment facility, we assume neither the role of a trustee nor engage in a fiduciary capacity concerning the transaction, thereby absolving itself from such responsibilities.
- 5.2.7. We affirm that the information provided by you in this regard will be treated as confidential and will not be divulged to any third party, except as necessitated by the applicable laws, regulations, and/or processes of any government authority, and/or in connection with any judicial proceedings pertaining to legal actions, suits, and/or proceedings arising from or related to these Terms.
- 5.2.8. We diligently report and pursue both confirmed and suspected instances of credit/debit card fraud. We may request additional authorization from you and the decision to seek further authorization rests solely with us. We retain the right to annul, postpone, decline delivery, or retract any transaction in case of suspected fraud. We shall not be held liable to you for any losses arising from such cancellation.
- 5.2.9. During the transaction process, we collect specific information such as user ID, time, date, IP address, and other relevant details aimed at identifying individuals involved in fraudulent activities. In cases where a transaction is suspected to be fraudulent, all records will be provided, with or without a notice, to law enforcement agencies and the credit/debit card company for a thorough fraud investigation. We are committed to collaborating with authorities to ensure the prosecution of offenders to the maximum extent permitted by law.
- 5.2.10. You can manage your payment settings through your Accounts. Payments are processed securely through the Platform's designated payment gateway.
- 5.2.11. We reserve the right to periodically review and adjust pricing terms to adapt to market dynamics and service enhancements. You will receive timely notifications regarding any changes, and updates will be accessible through the Platform, but this will not affect payment for Services that have been previously paid.
- 5.2.12. The Platform will utilise the Payment Processor for all chargebacks, including Vendor's Chargebacks and Buyer's Chargebacks. If a chargeback is approved by the Company, the refund will be processed to the original source of payment, with transaction charges deducted.

6. CHARGEBACK POLICY

6.1. Chargeback by Vendor for Subscription Plans:

- 6.1.1. If at any time, we record a decline, chargeback, or other rejection of a charge for any payable fees due directly to our Platform, on your Account ("**Vendor's Chargeback**"), this will be considered a breach of your payment obligations hereunder. Consequently, your Account will be automatically reverted to our Freemium plan.
- 6.1.2. When you are reverted to the Freemium plan, in the event that plan's limits, including features that are offered, are exceeded, any data exceeding the plan's allocated limits will be retained for a period of one (01) month. If you fail to pay the necessary subscription fee for the Premium Plan and these limits continue to be exceeded after this period, the excess data will be permanently deleted after one one-month retention period as specified in this Clause.
- 6.1.3. You agree that if a Vendor's Chargeback is initiated and determined to be unjustified or fraudulent, we reserve the right to impose such fees to cover administrative costs incurred. You will be liable to pay within seven (7) days following the date of our written request:
- 6.1.3.1. An amount equal to the amount of the Vendor's Chargeback;
 - 6.1.3.2. All third-party expenses incurred by us in relation to the Vendor's Chargeback, including charges made by our or your bank or payment processor or card issuer;
 - 6.1.3.3. An administration fee in addition to taxes; and
 - 6.1.3.4. All our reasonable costs, losses, and expenses incurred in recovering the amounts, including without limitation legal fees and debt collection fees.
- 6.1.4. If you have any inquiries or concerns regarding a payment made to our Platform, we strongly recommend reaching out to us at info@hubeco.market before initiating a Vendor's Chargeback or reversing the payment. This proactive step ensures that your subscription is not downgraded to the free plan. Additionally, it helps avoid unwarranted or erroneous Vendor's Chargebacks, which could result in downgrading your subscription plan.
- 6.1.5. We retain the right to dispute any Vendor's Chargeback received. This may involve providing the relevant credit card company or financial institution with pertinent information and documentation demonstrating that you authorised the transaction and received or utilised the rendered services. In such cases, you may be required to repay all fees associated with the Services purchased and subsequently charged back.

6.2. Chargeback by Buyer:

- 6.2.1. A chargeback by Buyers ("**Buyer's Chargeback**") is a request initiated by Buyers to reverse a transaction due to specific issues, as outlined in the clause 6.2.3.
- 6.2.2. You acknowledge that any Buyer's Chargeback must be initiated within 7 days from the transaction date. The requests for Buyer's Chargeback can be submitted by contacting Hubeco customer service.
- 6.2.3. Upon receiving a Buyer's Chargeback request, our support team will determine whether such request is eligible or not. To determine the eligibility, following factors (including but not limited to) are taken into consideration-
- 6.2.3.1. If the Buyer purchased a Product and it is not delivered by you within the estimated delivery date;
 - 6.2.3.2. If the Product delivered by you is different from the description of the Product that was ordered by the Buyer; and/or
 - 6.2.3.3. If you fail to meet the quality standards of the product and the Buyer is not satisfied.
- 6.2.4. Further, Hubeco's support team will conduct a thorough review of the provided evidence and may contact you for additional information. You may be required to provide evidence to substantiate your claim, which may include photographs, payment records, or any other relevant documentation. Optionally, we may require the Buyers to furnish such required information and documents to support their claim. The review process will be completed within 14 days of receiving the Buyer's Chargeback request.

- 6.2.5. If Buyer's Chargeback request is approved, the Buyer will receive a full refund within 7 business days from the Vendors. If the request is denied, a detailed explanation will be provided to the Buyer, and the transaction will remain unchanged.
- 6.2.6. In the event of a disagreement, Buyers and Vendors are encouraged to resolve the issue amicably through our dispute resolution process. If the dispute is not resolved, Hubeco will render a final decision based on the available evidence. This decision will be binding on both parties.
- 6.2.7. To minimise Buyer's Chargebacks, you need to provide accurate product descriptions, ensure timely delivery, and maintain high-quality standards. You are required to respond promptly to Buyer's Chargeback inquiries and cooperate with Hubeco during the investigation process. Repeated Chargebacks against you may result in penalties or suspension from the Platform.
- 6.2.8. Any costs incurred by Hubeco in this process, will be adjusted in the payments made by you.

7. CANCELLATION OF YOUR SUBSCRIPTION PLAN

- 7.1. You may cancel your subscription plans at any time by accessing your Account settings on the Platform. It should be noted that subsequent subscription payments for the Premium Plan are due and payable 30 days after the initial subscription date. Please note, that due to the monthly subscription nature, refunds are not available if the subscription is terminated before the end of the monthly billing cycle.
- 7.2. Please note that if you fail to renew your Premium plan or fail to pay the Premium subscription fee, you shall be automatically reverted to the Freemium Plan. In such cases, any features that are offered to Premium subscribers will no longer be accessible. You will be limited to listing only 5 Products in the Freemium plan.
- 7.3. If you are dissatisfied with the quality of our Services, please promptly contact us to express your concerns. We will address your complaints as soon as possible. To terminate your agreement, you must clearly inform us of your decision to withdraw from the agreement by email at info@hubeco.market before the 30-day notice period. We will acknowledge receipt of your cancellation promptly.
- 7.4. **Plan Apportionment:**
 - 7.4.1. Please note that changing/switching your subscription plan in the middle of a current subscription period, will be subject to the following conditions:
 - 7.4.1.1. If you upgrade your plan from Freemium to Premium at any time, the fee shall be charged and payable from such date, and the new subscription period will start from the date of the upgrade.
 - 7.4.1.2. If you downgrade your plan from Premium to Freemium at any time, the fees for the remaining subscription period shall not be refunded. The new subscription period will start from the date of the downgrade.
- 7.5. **Loss of Data, Content, and Capacity:**
 - 7.5.1. If your Account or any Services or third-party services related to your Account are cancelled (whether at your request or at Platform's discretion), it may cause or result in the loss of certain content, features, or capacity of your Account, including your Content, any analysis, lists of projects or Buyers or other usage data retained therein ("**Capacity Loss**"). We shall not be liable in any way for such Capacity Loss, or for saving a backup of your Account, Content, or such other data. Please also note that additional fees may apply to the re-activation of your Account and/or any Services following their cancellation, as determined by the Platform in its sole discretion.
 - 7.5.2. Following the termination of your Account, we reserve the right to delete all data in the normal course of operation. Data cannot be recovered once your Account or access to our Services is terminated.

8. LICENCE FOR PLATFORM ACCESS

Subject to your compliance with these Terms and the payment of applicable fees, if any, we provide you with a limited licence to access and make personal use of this Platform. However, you are not authorised to download any content (other than page caching) or modify the Platform, or any portion of it, except with our express written consent. This licence explicitly excludes any resale or commercial use of this Platform or its contents, the collection and use of any product listings, descriptions, or prices, any derivative use of this Platform or its contents, any downloading or copying of Account information for the benefit of another seller, or any use of data mining, robots, or similar data gathering and extraction tools.

9. CONFIDENTIALITY

- 9.1. For purposes of these Terms, "**Confidential Information**" means any information or materials disclosed by or on behalf of the Company or the Vendor to the other party before, on or after the Effective Date that: (a) if disclosed in writing or in the form of tangible materials, is marked "confidential" or "proprietary" or with a similar designation at the time of such disclosure; (b) if disclosed orally or presented visually, is identified as "confidential" or "proprietary" at the time of such disclosure, and is summarised in writing sent by the Disclosing Party to the Receiving Party within thirty (30) days after any such disclosure; or (c) due to its nature or the circumstances of its disclosure, a person exercising reasonable business judgement would understand to be confidential or proprietary. The existence of these Terms, the Services and payment terms, and the fact that the parties are engaged in discussions with respect thereto will be deemed Confidential Information of each party.
- 9.2. For the purposes of this clause, the "**Disclosing Party**" shall mean the party who has disclosed its Confidential Information to the other party in furtherance of the fulfilment of the purposes of this Agreement, and "**Receiving Party**" shall mean the party who has come into the possession of or with whom the Confidential Information has been shared by the Disclosing Party. Both Disclosing Party and Receiving Party shall be collectively referred to as "**Parties**".
- 9.3. The Parties agree and acknowledge that the Confidential Information shall not include information that: (a) is or becomes a part of the public domain through no act or omission of the Receiving Party; (b) was in the Receiving Party's lawful possession prior to the disclosure and had not been obtained by the either party either directly or indirectly from the Disclosing Party; (c) is lawfully disclosed to the Receiving Party by a third party without restriction on the disclosure; (d) needs to be disclosed pursuant to an order of a court, administrative agency or other government body; or (e) is independently developed by the Receiving Party.
- 9.4. The Parties agree and undertake as follows:
 - 9.4.1. that the Receiving Party shall not, without the prior written permission of the Disclosing Party, directly or indirectly disclose or cause to be disclosed any Confidential Information to any third party;
 - 9.4.2. that the Receiving Party shall take all steps as may be reasonably necessary to protect the integrity of the Confidential Information and to ensure avoiding any unauthorized disclosure thereof;
 - 9.4.3. that the Receiving Party shall promptly inform the Disclosing Party of any accidental disclosure of Confidential Information and shall take all steps, together with the Disclosing Party, to retrieve and protect the Confidential Information;
 - 9.4.4. that the Receiving Party shall use the Confidential Information only for the purpose for which it was provided and shall not use it for personal benefit or profit from the same in any unauthorized manner; and
 - 9.4.5. upon request by the Disclosing Party, the Receiving Party shall hand over possession of all Confidential Information furnished pursuant to this Agreement.
- 9.5. For the sake of clarity, the restrictions placed on Confidential Information under this Clause shall remain in force indefinitely.

10. INTELLECTUAL PROPERTY RIGHTS

10.1. Ownership Rights:

- 10.1.1. You acknowledge that no ownership of the Platform is being transferred. All rights, Intellectual Property, and interests in the Platform remain the exclusive property of the Company, its affiliates, or its licensors.

10.2. Intellectual Property Rights:

- 10.2.1. All rights, title, and interest in and to the Platform, including any and all copyrightable materials or any other content thereof which is or may be subject to any intellectual property rights under any applicable law (including any artwork, graphics, images, website templates, and widgets, literary work, source, and object code, computer code (including HTML), applications, audio, music, video and other media, designs, animations, interfaces, documentation, derivatives and versions thereof, the “look and feel” of the Platform Services, methods, products, algorithms, data, interactive features and objects, advertising and acquisition tools and methods, inventions, trade secrets, logos, domains, customised URLs, trademarks, service marks, trade names and other proprietary identifiers, whether or not registered and/or capable of being registered (collectively, “**Intellectual Property**”), and any derivations thereof, are owned by and/or licensed to the Company.
- 10.2.2. Subject to the provisions of these Terms, we grant you a limited, non-exclusive, non-transferable licence to access and use our Platform strictly for its intended purposes. This licence explicitly does not confer any ownership rights to you, and any unauthorised use constitutes a material breach of these Terms.
- 10.2.3. All copyright and other intellectual property rights in the material on our Platform are reserved.
- 10.2.4. All intellectual property rights discovered, developed, or otherwise coming into existence as a result of, for the purposes of, or in connection with, the Platform or the provision of any Services will automatically vest in and are assigned to us, including any enhancements, improvements and modifications to the Intellectual Property. You must not represent to anyone or in any manner whatsoever that you are the proprietor of the Platform and/or Intellectual Property.
- 10.2.5. We respect the intellectual property rights of others, and you are expected to do the same. Uploading, posting, or otherwise transmitting any content that infringes on the Company's or any third party's intellectual property rights is strictly prohibited. We reserve the right to promptly remove any infringing content.
- 10.2.6. These Terms of Sale permit you to use the Platform for your personal use only. This means you are not permitted to resell or give away any of the content you view or download. You are not permitted to reproduce, modify, create derivative works of, publicly display, publicly perform, or republish any of the material on our Platform, except as follows:
- 10.2.6.1. Your computer may store copies of such materials in RAM incidental to your accessing and viewing those materials.
- 10.2.6.2. You may store files that are automatically cached by your Web browser for display enhancement purposes.
- 10.2.6.3. You may print or download a reasonable number of pages of the Platform for your own personal use and not for further reproduction, publication, or distribution.
- 10.2.6.4. If we provide desktop, mobile, or other applications for download, you may download a single copy to your computer or mobile device solely for your own personal, non-commercial use, provided you agree to be bound by our end user licence agreement, if any, for such applications.
- 10.2.6.5. If we provide social media features with certain content, you may take such actions as are enabled by such features.
- 10.2.7. You must not:
- 10.2.7.1. Modify copies of any materials from this Platform.
- 10.2.7.2. Use any illustrations, photographs, video or audio sequences, or any graphics separately from the accompanying text.
- 10.2.7.3. Delete or alter any copyright, trademark, or other proprietary rights notices from copies of materials from this Platform.
- 10.2.8. These Terms do not convey any right or interest in or to the Company's Intellectual Property (or any part thereof), except only for the limited licence expressly granted above. Nothing in these Terms constitutes an assignment or waiver of the Company's Intellectual Property rights under any law.

10.3. Use of Your Intellectual Property:

- 10.3.1. You retain ownership rights to your Content. By providing us with the Content, you grant us a worldwide, royalty-free, perpetual, irrevocable, and sublicensable right to use, reproduce, modify, adapt, publish, translate, distribute, perform, and display such Content. To the extent that your Content includes personal information of you or third parties, it will be handled in accordance with our [Privacy Policy](#).
- 10.3.2. You acknowledge and agree that:
- 10.3.2.1. if you elect to upload any information or any Content to the Platform you:
- 10.3.2.1.1. represent and warrant that you either have the rights in that information or Content or have the necessary permission to upload, post, transmit or otherwise make available that information or Content via the Platform;
- 10.3.2.1.2. are solely responsible for that information or your Content and that we will not be liable for any loss, expenses, liabilities, costs, or damages that are caused by the information you provide on the Platform; and
- 10.3.2.1.3. you have procured all necessary rights from third parties, which are from time to time required in order for us to be able to provide the Platform or the Services to you.
- 10.3.2.2. For the avoidance of doubt, and in accordance with all applicable privacy laws, it is your responsibility to ensure that you have received prior consent from the third party required for you to provide to us their information for use under these Terms.
- 10.3.2.3. You agree that we may refer to you, your business name, publish your logo and/or trademark and make reference to you as a customer of ours in any communications or publications for the purposes of marketing or promoting our business provided that any proposed communication or reference is approved in writing in advance by you.

11. REPORT COPYRIGHT INFRINGEMENTS

- 11.1. You agree not to upload or transmit any communications or your Content that infringe or violate the rights of any party while using the Platform. We do not permit infringing materials to remain on the Platform and encourage users to promptly notify us if they believe any materials on the Platform, including advertisements or linked Content, infringe third-party copyrights.
- 11.2. Upon receipt of a proper notice of claimed infringement under the Copyright Act, 1957 (the “**Act**”), we will respond promptly to remove or disable access to the allegedly infringing material. We will follow the procedures specified in the Act to resolve the claim between the notifying party and the alleged infringer responsible for the Content.
- 11.3. To report copyright infringement issues, please reach out to us at info@hubeco.market.
- 11.4. We reserve a right to terminate contractual relationships with third parties who repeatedly infringe the copyrights of others.
- 11.5. In the event that we receive notice regarding a copyright infringement, we may cancel your Account, or remove the Content in our sole discretion, with or without prior notice to you. Any notices filed pursuant to this, may be deemed accepted, applicable, and compliant with the Act, or not, at our sole reasonable discretion. We reserve the right to notify the person or entity providing the infringement notice of such an action and provide any details included therein.
- 11.6. The Company has no obligation to monitor or enforce any intellectual property rights that may be associated with the Content you provide to us, but the Company does have the right to enforce such rights through any means it sees fit.

12. ACCEPTABLE AND PROHIBITED USES

- 12.1. Subject to your compliance with these Terms, including the **'Prohibited Uses'** defined in Clause 12.6 below, we grant you a non-exclusive, non-transferable, revocable licence to:
- 12.1.1. access the Services; and
 - 12.1.2. download any portion of the Content for utilising our Services.
- 12.2. Subject to compliance with these Terms, we may offer to provide the Services, as more comprehensively described on the Platform. These Services, selected by you, are intended solely for your own use and are not to be used or exploited for the benefit of any third party.
- 12.3. The provision of Services will be carried out on a best-efforts basis. We do not provide any warranties for the continuous availability or the accuracy of any content on the Platform or Content
- 12.4. You agree to be polite and respectful when you communicate or interact with others on the Platform or otherwise as a result of accessing our Services.
- 12.5. You agree to not encourage others to create an Account, leave a review, or otherwise interact with a third-party website, application, or service unless authorised by us.
- 12.6. **Prohibited Uses:**
- 12.6.1. While using the Platform and/or Services, you consent to abstain from activities that contravene these Terms, encompassing fraudulent acts, spamming, hacking, and any actions that could disrupt the operations of the Platform and/or Services;
 - 12.6.2. You are strictly prohibited from using any Buyer's contact or delivery information obtained through the Platform to circumvent the Platform and conduct offline business. This includes but is not limited to, contacting Buyers directly to arrange sales or transactions outside of the Platform, using Buyer information for marketing purposes not approved by the Platform, and sharing Buyer information with third parties without the explicit consent of the Buyer and the Platform. Any violation of this clause will be considered a breach of these Terms and may result in penalties, including suspension or termination of your Account.
 - 12.6.3. You agree not to directly or indirectly, circumvent, avoid, bypass, obviate, or negotiate with any other user (either registered with the Platform, initially communicated through the Platform, without the prior written consent of the Company. You acknowledge that any breach of this non-circumvention obligation will result in significant harm to the Company and agree to indemnify the Company for any losses incurred as a result of such breach.
 - 12.6.4. While using the Platform and/or Services, you are strictly prohibited from assuming the identity of others, utilising counterfeit accounts, or indulging in any conduct that may falsely represent their identity;
 - 12.6.5. You shall not edit or otherwise modify any material on our Platform unless you own or control the relevant rights in the material;
 - 12.6.6. You are prohibited from probing, scanning, or testing the vulnerability of our Platform and/or Services without our permission;
 - 12.6.7. You are prohibited from copying, modifying, creating derivative works of, downloading, adapting, reverse engineering, emulating, migrating to another service, translating, compiling, decompiling, or disassembling the Platform, the Services (or any part thereof), Vendor Module or any content offered by Platform or third party services for use and/or any part thereof in any way, or publicly display, perform, transmit or distribute any of the foregoing without our prior written and specific consent and/or as expressly permitted under these Terms;
 - 12.6.8. You agree not to submit, transmit, or display or use the Content in a context, that may be deemed as defamatory, libellous, obscene, harassing, threatening, incendiary, abusive, racist, offensive, deceptive, or fraudulent, encouraging criminal or harmful conduct, or which otherwise violates the rights of the Platform or any third party (including any intellectual property rights, privacy rights, contractual or fiduciary rights), or otherwise shows any person, entity or brand in a bad or disparaging light, without their prior explicit approval;
 - 12.6.9. You agree not to publish and/or make any use of the Platform and/or Services on any website, media, network, or system other than those provided by the Company, and/or frame, "deep link", "page-scrape", mirror and/or create a browser or border environment around any of the Services and/or Platform (or any part thereof), except as expressly permitted by the Company, in advance and in writing;
 - 12.6.10. You are prohibited from using our Platform and/or Services to copy, store, host, transmit, send, use, publish, or distribute any material that consists of or is linked to any spyware, computer virus, Trojan horse, worm, keystroke logger, rootkit, or other malicious computer software;
 - 12.6.11. You are prohibited from decrypting or deciphering any communications sent by or to our Platform without our permission;
 - 12.6.12. You agree not to purchase search engine or other pay-per-click keywords (such as Google AdWords), or domain names that use Company or Company's marks and/or variations and misspellings thereof;
 - 12.6.13. You shall not conduct any systematic or automated data collection activities, which include without limitation scraping, data mining, data extraction, and data harvesting on or in relation to our Platform without our express written consent;
 - 12.6.14. You shall not use our Platform except by means of our public interfaces;
 - 12.6.15. You shall not use data collected from our Platform for any direct marketing activity, including without limitation email marketing, SMS marketing, telemarketing, and direct mailing;
 - 12.6.16. You agree not to remove or alter any copyright notices, watermarks, restrictions; and signs indicating proprietary rights of any of our licensors, including copyright mark [©], creative commons [(cc)] indicators, or trademarks [* or ™] contained in or accompanying the Services;
 - 12.6.17. You must not do anything that interferes with the normal use of our Platform and/or Services;
 - 12.6.18. Systematically retrieve data or other content from the Services to create or compile, directly or indirectly, a collection, compilation, database, or directory without written permission from us; and
 - 12.6.19. Engage in any automated use of the system, such as using scripts to send comments or messages, or using any data mining, robots, or similar data gathering and extraction tools.

Additional activities that are prohibited

You may not access or use the Platform and/or our Services for any purpose other than that for which we make the Services available. The Services may not be used in connection with any commercial endeavours except those that are specifically endorsed or approved by us.

You agree not to:

- a. Trick, defraud, or mislead us and other users, especially in any attempt to learn sensitive account information such as user passwords.
- b. Circumvent, disable, or otherwise interfere with security-related features of the Platform, including features that prevent or restrict the use or copying of any content or enforce limitations on the use of the Platform and Services and/or the content contained therein.
- c. Disparage, tarnish, or otherwise harm, in our opinion, us and/or the Services. Use any information obtained from the Platform in order to harass, abuse, or harm another person.
- d. Make improper use of our Platform and/or Services or submit false reports of abuse or misconduct.
- e. Use the Services in a manner inconsistent with any applicable laws or regulations.
- f. Engage in unauthorised framing of or linking to the Services.
- g. Upload or transmit (or attempt to upload or to transmit) viruses, Trojan horses, or other material, including excessive use of capital letters and spamming (continuous posting of repetitive text), that interferes with any party's uninterrupted use and enjoyment of the Platform and/or Services or modifies, impairs, disrupts, alters, or interferes with the use, features, functions, operation, or maintenance of the Platform and/or Services.
- h. Attempt to impersonate another user or person or use the username of another user.

- i. Upload or transmit (or attempt to upload or to transmit) any material that acts as a passive or active information collection or transmission mechanism, including without limitation, clear graphics interchange formats ('gifs'), 1x1 pixels, web bugs, cookies, or other similar devices (sometimes referred to as 'spyware' or 'passive collection mechanisms' or 'pcms').
- j. Interfere with, disrupt, or create an undue burden on the Platform or the networks or services connected to the Platform.
- k. Harass, annoy, intimidate, or threaten any of our employees or agents engaged in providing any portion of the Services to you.
- l. Attempt to bypass any measures of the Platform and/or Services designed to prevent or restrict access to the Platform and/or Services, or any portion of the Platform and/or Services.
- m. Copy or adapt the Software, including but not limited to Flash, PHP, HTML, JavaScript, or other code.
- n. Except as permitted by applicable law, decipher, decompile, disassemble, or reverse engineer any of the software comprising or in any way making up a part of the Platform and Services.
- o. Except as may be the result of the standard search engine or Internet browser usage, use, launch, develop, or distribute any automated system, including without limitation, any spider, robot, cheat utility, scraper, or offline reader that accesses the Platform, or use or launch any unauthorised script or other software.
- p. Make any unauthorised use of the Platform and/or Services, including collecting usernames and/or email addresses of users by electronic or other means for the purpose of sending unsolicited emails, or creating Account(s) by automated means or under false pretences.

You acknowledge and agree that your failure to abide by any of the foregoing or any misrepresentation made by you herein may result in the immediate termination of your Account and/or any Services provided to you – with or without further notice to you, and without any refund of amounts paid on account of any such Services.

13. PROFANITY POLICY

- 13.1. We strictly prohibit the use of racist, hateful, sexual, or obscene language in any public area on the Platform. This policy encompasses text within listings, Dashboards, reviews, customer support and all other sections of the Platform that may be viewed by other users. You are encouraged to report any violations of this policy for prompt review, including without limitation:
 - 13.1.1. offensive display names; and/or
 - 13.1.2. offensive language in a listing or otherwise.
- 13.2. If any feedback comment, communication between users on the Platform, or email exchange related to transactions conducted on the Platform includes profanity, you are encouraged to submit a formal request at info@hubeco.market.
- 13.3. Disciplinary action may result in the indefinite suspension of your Account, temporary suspension, or a formal warning.

14. EMAIL ABUSE AND THREAT POLICY

- 14.1. Private communication, including email correspondence and chat support, conducted by you is not directly regulated by us. We strongly encourage you to maintain a professional, courteous, and respectful tone when communicating. While we generally do not intervene in private communications, we will thoroughly investigate and take appropriate action against certain types of unwanted emails and communications that violate any or all of our policies.
- 14.2. One such violation includes without limitation, spoof (fake) emails. It is essential to note that we will never request sensitive information from you through email. If you ever receive a spoof email claiming to be from us and asking for sensitive information, we urge you to promptly report it to us on info@hubeco.market for further investigation and necessary action.

15. FAIR USAGE POLICY

As part of our commitment to maintaining a high-quality user experience, we monitor Vendor activities on our Platform. This includes keeping records of Vendor transaction history and other pertinent details related to Platform usage. These practices are in place to ensure that all Vendors engage with our services responsibly and in accordance with our policies.

In cases where there is evidence of misuse of our Platform or a breach of these Terms, such as excessive order cancellations or unjustified refusal to fulfil orders that are not incorrect or defective, we reserve the right to cease providing our Services to the Vendor.

16. CLAIMS AGAINST OBJECTIONABLE CONTENT

- 16.1. While you have the responsibility to ensure that the Product specification page on the Platform includes accurate and compliant details, including but not limited to:
 - 16.1.1. The total price in a single figure for any goods or services, along with the breakup of the price, displaying all mandatory and voluntary charges such as delivery charges and applicable taxes, as applicable. These details will also be available on the invoice issued to the Buyer;
 - 16.1.2. Mandatory notices and information mandated by applicable laws;
 - 16.1.3. Products and services offered by the Vendor, including the place of origin, which is essential for enabling the Buyer to make an informed decision at the pre-purchase stage; and/or
 - 16.1.4. Importer information and guarantees related to the authenticity or genuineness of the imported Products;

If you encounter objectionable content, including content that falls within any provision of these terms, please contact us at info@hubeco.market.

17. VENDOR REPRESENTATIONS

- 17.1. By using the Platform, you represent and warrant that:
 - 17.1.1. All the information you submit will be true, accurate, current, and complete;
 - 17.1.2. You will maintain the accuracy of such information and promptly update such information as necessary;
 - 17.1.3. You have the legal capacity and you agree to comply with these Terms;
 - 17.1.4. You will cooperate with the Platform for any reasonable requests including requests for information regarding the Products and related services.
 - 17.1.5. You shall not, directly or indirectly, engage, participate, or negotiate in any transaction with a third party introduced or identified by the Company, without the express written consent of the Company. This includes but is not limited to placing and accepting orders, entering into contracts, or engaging in business transactions with such third parties outside of the Platform.
 - 17.1.6. Your use of the Platform shall be solely for your own purposes;
 - 17.1.7. If you register on our Platform as the representative of any entity, you represent that you are authorised to act on behalf of such entity and that such entity shall be bound to comply with these Terms upon your acceptance of these Terms;
 - 17.1.8. You are not a minor in the jurisdiction in which you reside and you are responsible for adhering to your country's laws when accessing our Platform and utilising our Services, given that the Company is located in India;
 - 17.1.9. You will not access the Platform through automated or non-human means, whether through a bot, script, or otherwise;

- 17.1.10. You will not use the Platform for any illegal or unauthorised purpose; and
- 17.1.11. Your use of the Services and/or Platform will comply with all applicable laws and regulations (including, without limitation, all applicable laws regarding online conduct and acceptable content, licensing, privacy, data protection, the transmission of technical data exported from India or the country in which you reside, the use or provision of financial services, notification and consumer protection, unfair competition, and false advertising).

18. LINKS TO THE THIRD-PARTY WEBSITES

- 18.1. We may provide links to third-party sites on our Platform as a convenience to you. You hereby acknowledge that when you access third-party sites, you do so at your own risk.
 - 18.1.1. You understand that external sites are beyond our control, and we are not accountable for the content, functionality, accuracy, legality, appropriateness, or any other aspect of such external websites or resources. The inclusion of any link does not imply endorsement or sponsorship by us or any association with its operators.
 - 18.1.2. We may provide access to services from external or third-party service providers, seamlessly integrated into our Platform. You acknowledge and agree that any issues or non-performance of such services will be addressed on a best-effort basis, subject to the pass-through obligations as agreed with the external/third-party service providers.
 - 18.1.3. You are advised to exercise caution when navigating external sites and using integrated services and carefully review the terms and conditions and privacy policies of all off-website pages and other websites that you visit.
 - 18.1.4. We reserve the right to modify or remove links to third-party sites and services at any time without notice. Continued use of our Platform constitutes acceptance of any modifications to the links provided.
 - 18.1.5. You acknowledge that we collaborate with external or third-party service providers to enhance the user experience. Any collaborative efforts aim to improve services but are subject to the terms and conditions agreed upon with the respective service providers.
 - 18.1.6. You may be notified when you are leaving our Platform and redirected to access a third-party site or service. Additionally, we are not responsible for any content, advertisements, products, or other materials available on external sites or through integrated services.

19. PLATFORM AVAILABILITY

- 19.1. While we do our best to keep the Platform and Services up and running all the time, we can't promise it will always be perfect. Sometimes, there might be interruptions, delays, or errors, or the Platform might not be free of viruses. If there are any problems, we'll try our best to fix them as soon as possible.
- 19.2. You need the internet to use the Platform, and you'll have to cover the costs for that. We won't be responsible for those costs.
- 19.3. The Platform might not work with every device or software out there, and sometimes we'll need to update it, which might make some parts temporarily unavailable.
- 19.4. We're not liable for any business losses or other indirect losses you might experience while using the Platform.
- 19.5. You're responsible for having the proper internet connection and devices to use our Services. If you use wireless devices, you might have to pay extra fees to your mobile network. And while we try to make sure our Services work on most devices, we can't guarantee they'll work perfectly on every single one.

20. SECURITY OF YOUR INFORMATION

Please take a moment to review our Privacy Policy which governs not only your visit to the Platform but also details the terms related to the collection of information from you, security measures, access to your data, and the transfer of your information. Rest assured, any personal information or data you share with us while using the Platform is treated with the utmost confidentiality and is strictly handled in accordance with our [Privacy Policy](#), as well as applicable laws and regulations. If you have any objections to the transfer or use of your information, we kindly advise against using the Platform. Your privacy and trust are of utmost importance to us, and we strive to maintain the highest standards of data protection and security.

21. TERMINATION

- 21.1. These Terms shall remain in full force and effect while you use the Platform and/or Services. WITHOUT LIMITING ANY OTHER PROVISION OF THESE TERMS, WE RESERVE THE RIGHT TO, IN OUR SOLE DISCRETION AND WITHOUT NOTICE OR LIABILITY, DENY ACCESS TO AND USE OF THE SERVICES AND/OR PLATFORM (INCLUDING BLOCKING CERTAIN IP ADDRESSES), TO ANY PERSON FOR ANY REASON OR FOR NO REASON, INCLUDING WITHOUT LIMITATION FOR BREACH OF ANY REPRESENTATION, WARRANTY, OR COVENANT CONTAINED IN THESE TERMS OR OF ANY APPLICABLE LAW OR REGULATION. WE MAY TERMINATE YOUR USE OR PARTICIPATION IN THE SERVICES AND ANY CONTENT OR INFORMATION THAT YOU POSTED AT ANY TIME, WITHOUT WARNING, IN OUR SOLE DISCRETION.
- 21.2. If we terminate or suspend your Account for any reason, you are prohibited from registering and creating a new Account under your name, a fake or borrowed name, or the name of any third party, even if you may be acting on behalf of the third party. In addition to terminating or suspending your Account, we reserve the right to take appropriate legal action, including without limitation pursuing civil, criminal, and injunctive redress.
- 21.3. We reserve the right to immediately suspend or terminate your access to our Platform and/or Services in the event you breach or default on any obligation that is incapable of being cured. If the default is capable of cure but remains uncured within fifteen (15) business days after receiving notice of such default, the Company reserves the right to suspend or terminate your access. For the purposes of this provision, a material breach shall include, but is not limited to, any violation of the clauses outlined in these Terms.
- 21.4. We may terminate the access to our Platform and/or Services by providing written notice to you if:
 - 21.4.1. you fail to remedy a material breach of these Terms within two (02) days of being notified of the breach;
 - 21.4.2. you become bankrupt, enter a voluntary arrangement, are in liquidation or receivership, cease business, threaten to cease business, or are otherwise insolvent.
- 21.5. You have the liberty to terminate your Accounts whenever you wish by adhering to the instructions that are clearly outlined on the Platform.
- 21.6. Clauses including Indemnity, Disclaimer, and Limitation of Liability shall survive termination of these Terms.

22. MODIFICATIONS AND INTERRUPTIONS

We reserve the right to change, modify, or remove the contents of the Platform and/or Services at any time or for any reason at our sole discretion without notice. However, we have no obligation to update any information on our Platform. We cannot guarantee that the Services will be available at all times. We may experience hardware, software, or other problems or need to perform maintenance related to the Platform, resulting in interruptions, delays, or errors. We reserve the right to change, revise, update, suspend, discontinue, or otherwise modify the Services at any time or for any reason without notice to you. You agree that we have no liability whatsoever for any loss, damage, or inconvenience caused by your inability to access or use the Platform during any downtime or discontinuance of the Platform. Nothing in these Terms will be construed to obligate us to maintain and support the Platform or to supply any corrections, updates, or releases in connection therewith.

23. WARRANTIES AND DISCLAIMERS

- 23.1. THE SERVICES ARE PROVIDED ON AN AS-IS AND AS-AVAILABLE BASIS. YOU AGREE THAT YOUR USE OF THE SERVICES WILL BE AT YOUR SOLE RISK. TO THE FULLEST EXTENT PERMITTED BY LAW, WE DISCLAIM ALL WARRANTIES, EXPRESS OR IMPLIED, IN CONNECTION WITH THE SERVICES AND YOUR USE THEREOF, INCLUDING, WITHOUT LIMITATION, THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. WE MAKE NO WARRANTIES OR REPRESENTATIONS ABOUT THE ACCURACY OR COMPLETENESS OF THE SERVICES' CONTENT OR THE CONTENT OF ANY WEBSITES OR MOBILE APPLICATIONS LINKED TO THE SERVICES AND WE WILL ASSUME NO LIABILITY OR RESPONSIBILITY FOR ANY (1) ERRORS, MISTAKES, OR INACCURACIES OF CONTENT AND MATERIALS, (2) PERSONAL INJURY OR PROPERTY DAMAGE, OF ANY NATURE WHATSOEVER, RESULTING FROM YOUR ACCESS TO AND USE OF THE SERVICES, (3) ANY UNAUTHORISED ACCESS TO OR USE OF OUR SECURE SERVERS AND/OR ANY AND ALL INFORMATION AND/OR FINANCIAL INFORMATION STORED THEREIN, (4) ANY INTERRUPTION OR CESSATION OF TRANSMISSION TO OR FROM THE SERVICES, AND (5) ANY BUGS, VIRUSES, TROJAN HORSES, OR THE LIKE WHICH MAY BE TRANSMITTED TO OR THROUGH THE SERVICES BY ANY THIRD PARTY. WE WILL NOT BE A PARTY TO OR IN ANY WAY BE RESPONSIBLE FOR MONITORING ANY TRANSACTION BETWEEN YOU AND ANY THIRD-PARTY PROVIDERS OF PRODUCTS OR SERVICES. AS WITH THE PURCHASE OF A PRODUCT OR SERVICE THROUGH ANY MEDIUM OR IN ANY ENVIRONMENT, YOU SHOULD USE YOUR BEST JUDGEMENT AND EXERCISE CAUTION WHERE APPROPRIATE.
- 23.2. You acknowledge that the Company will undertake no liability in the event there is any discrepancy or mismatch in Product information with the actual Product that may lead to a diluted customer experience which can lead to unnecessary returns and refunds impacting your performance ratings in future as well as the final payment remittance to you.
- 23.3. You acknowledge that you are solely responsible for ensuring the accuracy, validity, and timeliness of any green certifications associated with the Products listed by you on the Platform. You are further responsible for monitoring the expiration dates of any certifications and must promptly update or remove expired certifications. Any reliance on third-party authorities for the issuance of green certifications is at your own risk, and the Company disclaims any responsibility for verifying or validating these certifications. The Company shall not be held liable for the actions, conduct, or credibility of any third-party certifying authority.
- 23.4. You warrant that all representations regarding green certifications or environmental attributes are truthful and not misleading. The Company reserves the right to request documentation to verify the accuracy of any certification claims made by you.
- 23.5. You understand that any contract for the sale of any Product or services shall be a strictly bipartite contract between the Vendor and the Buyer. The Platform maintains control and involvement in the negotiation or acceptance of these terms at its discretion, reserving the right to determine or provide guidance on such terms.
- 23.6. You expressly agree not to accept orders directly once connected through the Platform. All orders, without exception, must be processed exclusively through the Platform.
- 23.7. Except as provided in these Terms, no further warranty, condition, undertaking, or term, express or implied, statutory or otherwise as to the condition, quality, performance, or fitness for the purpose of the Services provided in accordance with these Terms is given by us, other than as required by law. All implied warranties are hereby excluded.
- 23.8. We do not recommend the use of the Services for hosting personal content and shall not bear any security or integrity obligations or risks regarding breach or damage to any such content.

24. LIMITATION OF LIABILITY

- 24.1. We bear no responsibility for any secondary, resultant, or incidental harm that may occur due to the utilisation or inability to utilise the Platform and/or Services.
- 24.2. In no event will we or our directors, employees, or agents be liable to you or any third party for any direct, indirect, consequential, exemplary, incidental, special, or punitive damages, including lost profit, lost revenue, loss of data, or other damages arising from your use of the Platform and/or Services, even if we have been advised of the possibility of such damages.
- 24.3. We shall not be liable for:
- 24.3.1. Unsuccessful transactions, delays, or financial losses due to events beyond our control or third-party services;
 - 24.3.2. The Platform not meeting individual requirements, containing defects, or causing damage due to cyber attacks or other breaches beyond our control;
 - 24.3.3. Internet transmissions not being entirely private or secure; messages may be read by others; and/or
 - 24.3.4. Under various legal theories, we shall not be liable for loss of profits, revenue, goodwill, or any indirect or consequential damages arising from the use of the Platform and/or Services. You should be aware of potential risks in internet transmissions.
- 24.4. Furthermore, we shall not be liable for any harmful effects, including physical injury or property damage, resulting from the use of Products purchased through the Platform. The Vendor is solely responsible for ensuring that all Products meet specified quality standards, certifications, and safety requirements. The Buyer acknowledges that the Vendor is obligated to maintain quality as per the stipulated specifications and certifications, and any deviation from these standards is the sole responsibility of the Vendor.
- 24.5. You acknowledge and agree that these limitations of liability are agreed allocations of risk constituting in part the consideration for our Services to you, and such limitations will apply even if we have been advised of the possibility of such liabilities.

25. INDEMNIFICATION

You are solely and exclusively responsible for your use of the Services:

- 25.1. You agree to defend, indemnify, and hold us harmless, including our subsidiaries, affiliates, and all of our respective officers, agents, partners, and employees, from and against any loss, damage, liability, claim, or demand received or suffered by us, including reasonable attorneys' fees and expenses, made by any third party due to or arising out of (1) your contributions; (2) your use of the Platform, Services, Platform, and/or the Content; (3) the non-performance or harmful effects of Products that are not in line with the specified requirements; (4) breach of these Terms; (5) any breach of your representations and warranties set forth in these Terms (6) your violation of the rights of a third party, including but not limited to intellectual property rights; (7) any overt harmful act toward any other user of the Platform with whom you connected via the Platform; or (8) any inaccuracies or errors in the results provided by the Platform. Notwithstanding the foregoing, we reserve the right, at your expense, to assume the exclusive defence and control of any matter for which you are required to indemnify us, and you agree to cooperate, at your expense, with our defence of such claims. We will use reasonable efforts to notify you of any such claim, action, or proceeding that is subject to this indemnification upon becoming aware of it.

26. DISPUTE RESOLUTION AND GOVERNING LAW

- 26.1. You expressly acknowledge and agree that we shall have the right to enforce these Terms against you.
- 26.2. These Terms shall be construed in accordance with the applicable laws of Hyderabad, Telangana, India.
- 26.3. If any dispute or claim arises from or in connection with (i) these Terms, and/or (ii) your access to or use of our Platform and/or Services, the relevant parties shall resolve the dispute through amicable negotiations but in case the conflict continues the parties will resort for the dispute resolution procedure set out herein.
- 26.3.1. **Mediation:** In the event that the parties are unable to agree to a mutually agreeable decision and a dispute or difference arises in connection with the interpretation or implementation of these Terms, the parties agree that they will submit to a binding confidential mediation that will be held in Hyderabad, Telangana, India and in accordance with the applicable laws of India. The mediation shall be conducted in English

by a mediator that is mutually agreed upon by the Parties, as far as possible. The costs of the mediation shall be borne equally by all parties. The parties hereby waive any and all right to have these Terms of Sale adjudicated by a court or jury. The mediation proceedings shall be carried out in Hyderabad, Telangana, India. In accordance with the applicable laws of India. The mediator shall issue a final decision within sixty (60) days from the commencement of mediation proceedings.

- 26.3.2. **Arbitration:** In the event that the mediation fails to resolve the dispute within the sixty (60) day period, the parties agree to submit the dispute to binding arbitration. The arbitration shall be conducted in Hyderabad, Telangana and in accordance with the applicable laws of India. The arbitration shall be conducted in English by a sole arbitrator appointed jointly by the parties, as far as possible. The arbitrator must be independent. The arbitrator must issue a final decision within one (1) month from the commencement of arbitration proceedings. The place of arbitration shall be Hyderabad, Telangana, India. The award of the arbitration proceedings will be final and binding on both parties of these Terms.

27. MISCELLANEOUS

- 27.1. You understand that we will not be liable to you if we are prevented from, or delayed in, providing the Services due to acts, events, omissions, or accidents beyond our reasonable control ("**Unavoidable Events**"). Where an Unavoidable Event occurs, we will attempt to recommence the provision of the Services as soon as reasonably practicable.
- 27.2. We may assign any or all of our rights and obligations to any person or affiliate entity at any time. If any provision or part of a provision of these Terms is determined to be unlawful, void, or unenforceable, that provision or part of the provision is deemed severable from the Terms and does not affect the validity and enforceability of any remaining provisions.
- 27.3. You acknowledge that there is no joint venture, partnership, employment, or agency relationship created between you and us as a result of these Terms or use of the Services.

28. CONTACT

If you require further information or have any inquiries or concerns regarding the Terms of Sale, please do not hesitate to contact us in writing at:

Email: info@hubeco.market